

	§ 338, subd. (n) and Civ. Code § 52, subd. (b)(2) [statute of limitations is three years]; 4AC ¶ 70.) The relation back doctrine does not apply because Plaintiff never alleged any facts about the July 28, 2020 incident in the original complaint. (See <i>Barrington v A.H. Robins Co.</i> (1985) 39 Cal.3d 146, 154 [for the relation back doctrine to apply, the amended complaint must be based on the same operative facts alleged in the original complaint].) <u>7th and 8th causes of action (violation of Labor Code §§ 98.6 and 1102.5):</u> The 4AC fails to state facts sufficient to constitute these claims. Labor Code §§ 98.6 and 1102.5 applies to employers, i.e., individual supervisory employees are not personally liable for violations of these provisions. (See Labor Code §§ 98.6, subd. (b)(2),(3), 1102.5, subds. (a), (b); <i>Mewalla v. Middleman</i> (N.D. Cal. 2022) 601 F. Supp.3d 574, 608-609; <i>Tillery v. Lollis</i> (E.D. Cal. 2015) 2015 WL 487311, *8-9; see also <i>Jones v. Lodge at Torrey Pines Partnership</i> (2008) 42 Cal.4th 1158, 1164-1168.) <u>10th cause of action (intentional infliction of emotional distress):</u> The 4AC states facts sufficient to constitute this cause of action. The workers compensation exclusivity rule does not bar a suit for emotional distress damages attributed to unlawful discrimination, harassment or other misconduct that “exceeds the normal risks of the employment relationship.” (<i>Saunders v. Sally Beauty Supply LLC</i> (C.D. Cal. 2020) 2020 WL 1847620, * 2; 4AC ¶¶ 93, 95.) <u>9th and 11th causes of action:</u> Plaintiff concedes the 4AC fails to state sufficient facts to constitute these causes of action. Defendant shall file an answer by 8/3/26. The court sets a status conference for 8/10/26 at 8:45am in Dept. C24. Defendant shall give notice.
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302	<i>Noriega vs. Avalonbay Communities, Inc.</i>	Before the Court are four motions. The demurrer by Avalonbay Communities, Inc. aka Eaves Santa Margarita (Avalon) to the First Amended Complaint (FAC) filed by plaintiff Carlos Noriega is SUSTAINED as to the 1st, 4th, 5th, 10th, 12th, 13th, 18th, and 19th causes of action and OVERRULED as to the remainder. The motion to strike by Avalon is GRANTED. The demurrer by 1st Solution Construction Service (1st Solution) to the FAC is SUSTAINED as to the 3rd, 4th, 9th, 12th, 13th, 15th, 17th, 20th and 21st causes of action and OVERRULED as to the remainder. The motion to strike by 1st Solution is GRANTED. Plaintiff shall have leave to file a second amended complaint no later than 8/3/26. <u>DEMURRER BY AVALON</u> <u>1st cause of action – Premises Liability:</u> this cause of action is insufficiently pled. (See <i>Castellon v. U.S. Bancorp</i> (2013) 220 Cal.App.4th 994, 998 [elements]; insufficient facts pled as to “unreasonable risk of harm,” “fail[ure] to repair or warn of the condition” and Plaintiff was injured by the “continuous unsafe, dangerous, and uninhabitable conditions.” FAC ¶¶63, 64 & 66.) Demurrer is SUSTAINED. <u>4th cause of action – Private Nuisance:</u> this cause of action is insufficiently pled. (See <i>Dep’t of Fish & Game v. Superior Ct.</i> (2011) 197 Cal. App. 4th 1323, 1352 [elements]; insufficient facts pled showing, inter alia, defendants created a condition that “interfere[d] with the comfortable enjoyment of life or property; or was a fire hazard or other potentially dangerous condition” in either the unit
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	or common areas (FAC ¶88) or how Plaintiff was “harmed” (FAC ¶93).] Demurrer is SUSTAINED. <u>5th cause of action - Breach Of Contract (Covenant Of Quiet Enjoyment) AND 10th cause of action - Breach Of Contract Third Party Beneficiary (Covenant Of Quiet Enjoyment):</u> These causes of action are insufficiently pled. (See <i>Andrews v. Mobile Aire Ets.</i> (2005) 125 Cal. App. 4th 578, 588–90 [elements]; insufficient facts pled showing, inter alia, what the defendants failed to repair, the “acts or omissions” upon which this cause of action is based or how there was a substantial interference as stated in ¶¶101 & 162.) Demurrer is SUSTAINED. <u>12th cause of action - Intentional Infliction Of Emotional Distress:</u> This cause of action is insufficiently pled. (See <i>Hughes v. Pair</i> (2009) 46 Cal. 4th 1035, 1050 [elements]; plaintiff fails to plead, inter alia, extreme and outrageous conduct. (FAC ¶¶191-192). Demurrer is SUSTAINED. <u>13th cause of action - Negligent Infliction Of Emotional Distress:</u> The 13th cause of action is merely a duplicate of the 1st cause of action for premises liability. The 13th cause of action adds nothing to the complaint by way of a theory of recovery. “A claim of negligent infliction of emotional distress is not an independent tort but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply.” (<i>Wong v. Jing</i> (2010) 189 Cal.App.4th 1354, 1377.) A demurrer may be sustained when a cause of action is duplicative of another cause of action and thus adds nothing to the complaint by way of fact or theory of recovery. (<i>Palm Springs Villas II Homeowners Association, Inc. v. Parth</i> (2016) 248 Cal.App.4th 268, 290) Accordingly, the demurrer is SUSTAINED.
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